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DEPARTMENT OF STATE

ASSISTANT SECRETARY

December 19, 1941.

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740.0011 (EUROPEAN WAR 1939)/12-1941
CSEK

The drafts, (1) Joint Declaration and (2) Memorandum of Agreement: Supreme War Council, were completed today during a conference in the Secretary's office, at which were present the Secretary, Mr. Berle, Mr. Hackworth, Mr. Dunn, Mr. Feis, Mr. Pasvolsky, Mr. Hamilton, and Mr. Savage. The two papers were sent by the Secretary to the White House at one o'clock. With them he sent a copy of my memorandum of December 17, 1941 containing a brief sketch of the Supreme War Council of 1917-1918.

Just before the Secretary left for lunch at one o'clock he asked me to prepare before Cabinet meeting at two, a memorandum setting out the high points of these two papers.

The Secretary called Mr. Berle, Mr. Hackworth and me in about four o'clock this afternoon to say that these two papers had been discussed at the Cabinet meeting. There seemed to be general approval of them. The President mentioned only one point about which he had hesitancy. This was about the constitutionality of the Joint Declaration, having in mind especially the agreement not to conclude a separate armistice or cease hostilities except by common agreement.

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This question was discussed for some time and it was generally felt that there was no real doubt as to the constitutionality of the provisions. The Secretary suggested, however, that the provision might well be taken from the Joint Declaration, which would be signed by many countries, and placed in the draft regarding the Supreme War Council, which would be signed by four countries. Mr. Welles, who came in during the discussion, suggested also that the first paragraph be changed to contain an enumeration of the titles of the heads of the four governments. Mr. Hornbeck had also suggested in writing that the term "world-wide" be removed from the Joint Declaration.

These three changes were made in the two papers and they were taken by Mr. Berle to the White House at six p.m., to be substituted in place of the two papers the Secretary had taken over to Cabinet meeting.

Carlton Savage

A-L:CS:AMH

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December 19, 1941, 6 p.m.

MEMORANDUM OF AGREEMENT:

SUPREME WAR COUNCIL

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I.

1. With a view to the more effective prosecution of warfare against Germany, Italy and Japan, a Supreme Was Council is created composed of H. B. M. Prime Minister in the United Kingdom, the President of the United States of America, the President of the Executive Yuan and Generalissimo of the Armies of the National Government of the Republic of China, and the President of the Soviet of Peoples Commissars of the Union of Soviet Socialist Republics in respect of warfare against those countries with which the Soviet Union is at war. They may designate a member of their government with full power to represent them.

2. The Chiefs of State or of government above named pledge themselves not to cease hostilities against or conclude a separate armistice with the common enemies or any of them, except by common agreement.

3. The function of the Supreme War Council is to

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to supervise and coordinate the general conduct of the war and to provide for its successful prosecution.

4. The Supreme War Council may determine theatres of war and may provide for representation of any other government actively engaged in war against a common enemy in such theatres.

5. The Council will be responsible for coordinating distribution of available resources of all categories between various theatres of war.

6. The Supreme War Council shall be charged with effecting unified command in any theatre of war determined by it.

II.

1. The Supreme War Council will create a Staff responsible to it and consisting of representatives of the armed forces of each of the members of the Council, who may be the highest ranking officers of the different branches of the respective armed forces.

2. The

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2. The Staff may draw up general war plans, and shall review general war plans drawn up by the competent authorities of each country. It shall follow the execution by each country of the part allotted to it in any general operation or undertaking, but shall not exercise any of the powers of the commanders-in-chief in the field. It shall perform such other functions as may be assigned to it by the Council.

3. The members of the Staff shall receive from the government and the competent authorities of their respective countries all proposals, information and documents relating to the conduct of the war. They shall watch, day by day, the situation of the armed forces and the means of all kinds of which the armed forces and the enemy armed forces dispose.

4. By direction of the Supreme War Council, the Staff may designate a Staff Division to serve in respect of any theatre of war and may provide for representation

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of the armed forces of any other power engaged in active war against any of the common enemies in such theatre.

5. The general staffs and military, naval and air commands of the armed forces of each power charged with the conduct of military operations remain responsible to their respective governments, subject to the creation of any unified command which may be agreed upon.

6. The Staff shall sit continuously and shall establish headquarters for itself or for any Staff Division at such place or places, or in any region, as may be approved by the Supreme War Council.